

Dakshinanchal Vidyut Vitran Nigam Ltd. v. District Consumer Forum, Mainpuri

Allahabad High Court · Division Bench · 21 March 2023 · WRIT - C No. 61611 of 2009 · **Writ dismissed in default; 2009 stay of Forum award vacated.**

HEADNOTE

DVVNL's writ attacking a District Consumer Forum (II), Mainpuri award was dismissed in default after none appeared for the petitioner; the 24.11.2009 stay of that award stood vacated. The licensee's plea that the Forum lacked jurisdiction under the Electricity Code 2003 or the U.P. Electricity Supply Code, 2005 was not decided.

FACTUAL SUMMARY

DVVNL challenged the District Consumer Forum (II), Mainpuri judgment dated 18.6.2009 in complaint case no. 136 of 2006 by Writ-C No. 61611 of 2009. On 24.11.2009 a Division Bench issued notice to the consumer and stayed the Forum award, the licensee urging that the Forum lacked jurisdiction under the Electricity Code 2003 or the U.P. Electricity Supply Code, 2005, a point said to arise in other writs. On 21.3.2023 the list was revised and none appeared for the petitioner.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal in default

HOLDING

After the list was revised and none appeared for the petitioner, the writ was dismissed in default and the 24.11.2009 interim stay of the District Consumer Forum (II), Mainpuri judgment dated 18.6.2009 in complaint case no. 136 of 2006 was vacated. The jurisdictional challenge was not adjudicated. ¶ 2

PRINCIPLE TAGS

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance

DVVNL's writ attacking a District Consumer Forum (II), Mainpuri award was dismissed in default after none appeared for the petitioner; the 24.11.2009 stay of that award stood vacated. The licensee's plea that the Forum lacked jurisdiction under the Electricity Code 2003 or the U.P.. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DISTRICT CONSUMER FORUM HAS JURISDICTION TO ENTERTAIN A CLAIM UNDER THE ELECTRICITY CODE 2003 OR A DISPUTE UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005

Urged as the ground for the 2009 stay; never decided on merits before dismissal in default. ¶ 1